

Chapter 11

NUISANCES*

Art. I.	In General, §§ 11-1—11-25
Art. II.	Noise, §§ 11-26—11-50
Art. III.	Nuisances on Private Property, §§ 11-51—11-61

ARTICLE I. IN GENERAL

Secs. 11-1—11-25. Reserved.

ARTICLE II. NOISE†

Sec. 11-26. Findings.

It is found and declared that:

- (1) The making and creation of loud, unnecessary or unusual noises within the limits of the city is a condition which has existed for some time and the extent and volume of such noise is increasing.
- (2) The making, creation or maintenance of such loud, unnecessary, unnatural or unusual noises which are prolonged, unusual and unnatural in their time, place and use affect and are a detriment to the public health, comfort, convenience, safety, welfare and prosperity of the residents of the city.
- (3) The necessity in the public interest for the provisions and prohibitions hereinafter contained and enacted, is declared as a matter of legislative determination and public policy, and it is further declared that the provisions and prohibitions hereinafter contained and enacted are in

***Cross references**—Administration, Ch. 2; board of health, § 2-71 et seq.; department of health and welfare, § 2-216 et seq.; determination of hazardous buildings, § 7-27; abandonment of refrigerators and certain other appliances restricted, § 9-3; littering, rubbish, garbage, sewage and noxious material prohibited in parks and recreation areas, § 12-71; noise standards, § 22-551 et seq.

†**Cross references**—Peddlers and solicitors prohibited from making any noise to attract customers, § 8-121; noise standards, § 22-551 et seq.

pursuance of and for the purpose of securing and promoting the public health, comfort, convenience, safety, welfare and prosperity and the peace and quiet of the city and its inhabitants.

(Ord. No. 63, § 1, 12-4-57)

Sec. 11-27. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

A-weighted sound level shall mean the sound pressure level in decibels as measured on a sound level meter using the A-weighting network. The level so read is designated dB(a) or dBA.

Impulsive sound shall mean sound of short duration, usually less than one (1) second, with an abrupt onset in rapid decay. Examples of sources of impulsive sound include explosions, drop forge impacts, and the discharge of firearms.

Noise disturbance shall mean any sound which endangers or injures the safety or health of humans or animals, or annoys or disturbs a reasonable person of normal sensitivities, or endangers or injures personal or real property.

Sound-amplifying equipment shall mean any machine or device for the amplification of the human voice, music or any other sound. Sound-amplifying equipment shall not be construed as including standard automobile radios when used and heard only by occupants of the vehicle in which installed or warning devices on authorized emergency vehicles or horns or other warning devices on other vehicles used only for traffic safety purposes.

Sound truck shall mean any motor vehicle, or horse-drawn vehicle, having mounted thereon, or attached thereto, any sound-amplifying equipment.

(Ord. No. 63, § 2, 12-4-57; Ord. No. 372, 5-24-95)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 11-28. Commercial and noncommercial use of sound trucks—Registration and license.

No person shall use, or cause to be used, a sound truck with its sound-amplifying equipment in operation, for commercial or noncommercial purposes, in the city before filing a registration statement with the city manager in writing and procuring a license for such use as hereinafter provided. The registration statement shall be filed in duplicate and shall state the following:

- (1) Name and home address of the applicant.
- (2) Address of place of business of applicant.
- (3) License number and motor number of the sound truck to be used by applicant.
- (4) Name and address of person who owns the sound truck.
- (5) Name and address of person having direct charge of sound truck.
- (6) Names and addresses of all persons who will use or operate the sound truck.
- (7) The purpose for which the sound truck will be used.
- (8) A general statement as to the section or sections of the city in which the sound truck will be used.
- (9) The proposed hours of operation of the sound truck.
- (10) The number of days of proposed operation of the sound truck.
- (11) A general description of the sound-amplifying equipment which is to be used.
- (12) The maximum sound-producing power of the sound-amplifying equipment to be used in or on the sound truck, and a statement of the following:
 - a. The wattage to be used.
 - b. The volume in decibels of the sound which will be produced.
 - c. The approximate maximum distance for which sound will be thrown from the sound truck.

(Ord. No. 63, § 3(a), 12-4-57)

Sec. 11-29. Same—Regulations governing license.

(a) The city manager shall issue a license required by section 11-28 to the applicant, to which a copy of the registration statement shall be attached, if the proposed use of the sound truck as shown by the registration statement conforms with the following regulations, which shall govern the issuance of the license and shall be printed thereon:

- (1) The only sounds permitted are music or human speech.
- (2) Operations are permitted for four (4) hours each day, except on Sundays and legal holidays when no operations shall be authorized except on special permit to be issued as hereinafter provided. The permitted four (4) hours of operation shall be between the hours of 11:30 a.m. and 1:30 p.m. and between the hours of 4:30 p.m. and 6:30 p.m.
- (3) Sound-amplifying equipment shall not be operated unless the sound truck upon which such equipment is mounted is operated at a speed of at least ten (10) miles per hour except when such truck is stopped or impeded by traffic. Where stopped by traffic the sound-amplifying equipment shall not be operated for longer than one (1) minute at each such stop.
- (4) Sound shall not be issued within one hundred (100) yards of hospitals, schools, churches, or courthouses.
- (5) The human speech and music amplified shall not be profane, lewd, indecent, or slanderous.
- (6) The volume of sound shall be controlled so that it will not be audible for a distance in excess of one hundred (100) yards from the sound truck and so that such volume is not unreasonably loud, raucous, jarring, disturbing, or a nuisance to persons within the area of audibility.
- (7) No sound-amplifying equipment shall be operated with an excess of fifteen (15) watts of power in the last stage of amplification.

(b) Upon application to the city manager for permission to operate a sound truck on Sundays or legal holidays and/or during hours other than those specified under (2) above, for other than

commercial advertising purposes, a special permit to operate a sound truck may be issued upon such conditions as will insure against interference with religious services or civic observances and the general tranquility of the community. Special permission to operate a sound truck under the provisions hereof shall be noted by the city manager upon the license to operate.
(Ord. No. 63, § 3(b), 12-4-57)

Sec. 11-30. Same—Possession and display of license.

A licensee shall keep the license required by section 11-28 in his possession in the sound truck during the time the sound truck's sound-amplifying equipment is in operation. The license shall be promptly displayed and shown to any policeman of the city upon request.
(Ord. No. 63, § 3(c), 12-4-57)

Sec. 11-31. Commercial use of sound-amplifying equipment other than in sound trucks prohibited.

No person shall play, use, operate or permit to be played, used or operated, any radio or television receiving set, phonograph, loudspeaker, or sound-amplifying equipment for producing or reproducing sound, the sound of which is cast upon the public streets, for the purpose of commercial advertising or attracting the attention of the public to any building, structure or place, other than from a sound truck licensed under section 11-28.
(Ord. No. 63, § 4, 12-4-57)

Sec. 11-32. Exclusions.

The provisions of this article shall not apply to or be deemed to prohibit the use of mobile or stationary sound trucks or sound-amplifying equipment used in connection with any parade, procession or open-air public meeting, for the conduct of which a license is held under sections 8-46 through 8-50.
(Ord. No. 63, § 5, 12-4-57)

Sec. 11-33. Prohibited acts—Specific.

(a) No person shall cause any noise which, due to its volume (considered alone or in connection with its pitch or frequency or

other characteristics), has a tendency to annoy, disturb, or injure persons of ordinary sensitivity, or to endanger the comfort, repose, health, peace, safety, convenience, welfare, or prosperity of such persons within the limits of the city. Acts prohibited under this section include, but shall not be limited to, the following:

- (1) The operation of any sound reproducing or amplifying device or machine on, or within, fifteen (15) feet of a public way so as to be plainly audible fifty (50) feet or more from the device or machine.
- (2) The operation or playing of any sound reproducing or amplifying device or machine or musical instrument so as to be plainly audible on the interior of a building through closed windows. This subsection shall not apply to sound plainly audible only within the same building in which the device, machine, or musical instrument is operated or played, or within a building all of whose lawful occupants either consent to the sound or occupy only sections thereof in which the sound is not plainly audible.
- (3) The operation or playing of any sound reproducing or amplifying device or machine or musical instrument so as to be plainly audible on the interior of a dwelling unit, through closed doors, within the same building. This subsection shall not apply to sound plainly audible only within the same dwelling unit in which the device, machine, or musical instrument is operated or played, or within a dwelling unit whose occupant consents to the sound.
- (4) The operation of a motor vehicle so as to exceed tire traction limits, whether in acceleration, deceleration, or braking; to race or gun the engine; to rapidly accelerate; to use the horn other than as a warning signal; or to use the vehicle in any manner to create noise which is not incidental to the vehicle's use as a mode of transportation. This subsection shall not apply to sounds made in response to an emergency reasonably perceived by the operator.
- (5) The use of explosives, including explosive fireworks, unless such use is otherwise permitted as may be provided from time to time under the ordinances of the city.

(b) No person who is the owner or occupant, or who is otherwise in control, of any building or structure, or any section thereof, or other property in the city shall permit or tolerate on his premises any conduct which violates this chapter or which, because of the number of persons gathered on his premises, has the effect which this chapter seeks to prohibit, after having been advised of same.

(Ord. No. 374, 5-24-95)

Editor's note—Ordinance No. 374, adopted May 24, 1995, deleted § 11-33 and added § 11-33 to read as set forth herein. Formerly, § 11-33 pertained to fees and derived from § 6 of Ord. No. 63, adopted Dec. 4, 1957.

Sec. 11-34. Same—Exception.

Any person, corporation, or entity may seek an exception to this article by written request to the city manager.

(Ord. No. 374, 5-24-95)

Editor's note—Ordinance No. 374, adopted May 24, 1995, added § 11-34 to read as herein set out, and renumbered previous §§ 11-34 and 11-35 as §§ 11-35 and 11-36.

Sec. 11-35. Same—General.

(a) The making, creation or permitting of any unreasonably loud, disturbing or unnecessary noise in the city is prohibited.

(b) The making, creating or permitting of any noise of such character, intensity or duration as to be detrimental to the life, health or welfare of any individual, or which either steadily or intermittently annoys, disturbs, injures or endangers the comfort, repose, peace or safety of any individual is prohibited. The following standards shall apply:

- (1) Continuous airborne sound which has a sound level of sixty-five (65) dBAs.
- (2) Impulsive sound in air which has an impulsive sound level of eighty (80) dBAs.

Noises greater than these standards are prohibited.

(Ord. No. 372, 5-24-95)

Editor's note—Ordinance No. 372, adopted May 24, 1994, amended § 11-34 to read as herein set out. Prior to such amendment, § 11-34 pertained to penalty and derived from § 7 of Ord. No. 63, adopted December 4, 1957. See editor's note to § 11-34.

Sec. 11-36. Penalty.

Any person who violates this article shall be fined not less than one hundred dollars (\$100.00). Any such person shall be deemed guilty of a separate offense for every day during any portion of which any violation of this article is committed, continued, or permitted.

(Ord. No. 372, 5-24-95; Ord. No. 374, 5-24-95)

Secs. 11-37—11-50. Reserved.**ARTICLE III. NUISANCES ON PRIVATE PROPERTY*****Sec. 11-51. Purpose.**

The city council recognizes the substantial investments that the residents of the city have made in their real property. The city council desires to protect such investments to the maximum extent possible. In full recognition of the property rights of all residents of the city, the city council adopts the provisions of this article to protect the health, safety and welfare of the residents of the city. The council further recognizes that the failure of some residential and nonresidential property owners to maintain their property has resulted in progressive deterioration which has the effect of creating blighted conditions. If these conditions are allowed to continue, they may necessitate the expenditures of large amounts of public funds to correct and eliminate such conditions. By reason of the restrictions and regulations contained herein, the growth of blighted areas may be prevented and the neighborhood and property values may be maintained and the health, safety and welfare of the community protected and fostered.

(Ord. No. 416, 4-11-01)

***Editor's note**—Ord. No. 416, adopted April 11, 2001, added new provisions to the Code as Art. I of Ch. 11. In order to preserve the organizational style of the Code, said provisions have been redesignated as Art. III of Ch. 11 at the editor's discretion.

Sec. 11-52. Definition.

For the purposes of this article, the term "nuisance" is defined to mean any condition or use of premises, both interior and exterior, which unreasonably interferes with the health, safety, peace, comfort or convenience of the general community and is detrimental to the property of others or which causes or tends to cause substantial diminution in the value of other property in the neighborhood in which such premises are located. This includes, but is not limited to, the keeping or the depositing on, or the scattering over the premises of, and the maintenance of any of the following:

- (1) Lumber, junk, trash, or debris.
- (2) Abandoned, discarded or unused objects or equipment such as automobiles, furniture, stoves, refrigerators, freezers, cans, or containers.
- (3) Any compost pile which is of such a nature as to spread or harbor disease, emit unpleasant odors or harmful gas, or attract rodents, vermin or other disease-carrying pests, animals or insects.
- (4) Deleterious or septic material, unless such material is retained in containers or vessels which are covered.
- (5) Any public nuisance as defined by statute.
- (6) Any attractive nuisance which may prove detrimental to the health or safety of children whether in a building, on the premises of a building or upon an unoccupied lot. This includes, but is not limited to: abandoned wells, shafts, basements, excavations, abandoned iceboxes, refrigerators, motor vehicles, any structurally unsound fences or structures, lumber, trash, fences or debris.
- (7) Unsanitary conditions dangerous to health are in violation of this Code.
- (8) Graffiti on any public or private structure, object or surface. Graffiti means any inscription, word, figure, painting or other defacement that is written, marked, etched, scratched, sprayed, drawn, painted, engraved on

or otherwise affixed to or on any surface or structure on public or private property to the extent such is not authorized by the owner or occupant thereof.
(Ord. No. 416, 4-11-01; Ord. No. 542, § 3, 4-8-2015)

Sec. 11-53. Maintenance of nuisance.

No person, whether natural or otherwise, individually or jointly, shall maintain a nuisance within the city.
(Ord. No. 416, 4-11-01; Ord. No. 542, § 3, 4-8-2015)

Sec. 11-54. Acts of nuisance.

Acts of nuisance shall include but are not expressly restricted to:

- (1) The owner, occupant or the agent of any owner or occupant of lots, parcels or areas within the city permitting the premises to become unsanitary or a fire menace by allowing any offensive or unsafe matter to grow, accumulate or otherwise occupy and remain upon such premises.
- (2) The owner, occupant or the agent of any owner or occupant of lots, parcels or areas within the city in a residential area allowing junk, disabled cars and trucks, trash, waste, old lumber, unused and/or abandoned appliances to accumulate and remain upon the premises.
- (3) Application of graffiti to any surface or structure on public or private property by any means or device capable of scarring or leaving a visible mark on any surface or structure.

(Ord. No. 416, 4-11-01; Ord. No. 542, § 3, 4-8-2015)

Sec. 11-55. Duty of maintenance of private property.

No person, nor the agent or invitee of any person, owning, leasing, occupying or having charge of any premises shall maintain or keep any nuisance thereon, nor shall any such person, or the agent or invitee of any such person, keep or

maintain such premises in a manner causing substantial diminution in the value of the other property in the neighborhood in which such premises are located.

(Ord. No. 416, 4-11-01; Ord. No. 542, § 3, 4-8-2015)

Sec. 11-56. Storage of personalty as nuisance.

Unsheltered storage of old, unused, stripped, junked, and other automobiles not in good and safe operating condition, and of any other vehicles, machinery, implements, and/or equipment and personal property of any kind which is no longer in use for the purposes for which it was manufactured, which hereinafter are collectively described as "said personalty", for a period of ninety days or more (except in licensed junk yards) within the corporate limits of the city, is hereby declared to be a nuisance. (Ord. No. 416, 4-11-01)

Sec. 11-57. Abatement of nuisance by owners.

The owner, owners, tenants, lessees and/or occupants, or any agent thereof, of any lot within the corporate limits of the city upon which such storage is made, and also the owner, owners, and/or lessees, or any agent thereof, of said personalty involved in such storage (all of whom are hereinafter referred to collectively as "owners"), shall jointly and severally abate said nuisance by the prompt removal of said personalty into completely enclosed buildings authorized to be used for such storage purposes, if within the corporate limits of the city, or otherwise to remove it to a location without said corporate limits. (Ord. No. 416, 4-11-01; Ord. No. 542, § 3, 4-8-2015)

Sec. 11-58. Enforcement of article.

Enforcement of this article shall be the responsibility of the chief building and code enforcement official or his/her designees, including the authority to issue warnings, notice, summons or citations to appear in circuit court or to issue a local ordinance citation to any person, natural or otherwise, including but not limited to any owner, landlord, agent, tenant, lessee or sublessee

who shall violate, or permit, allow or suffer any violation of a provision of this Code, or any city ordinance, by-law or regulation.

(Ord. No. 416, 4-11-01; Ord. No. 542, § 3, 4-8-2015)

Sec. 11-59. Notice to abate nuisance.

Whenever the existence of any nuisance as defined in this article, on any lots or parcels of real estate situated within the city, shall come to the knowledge of the chief building and code enforcement officer or his/her designees, it shall be his/her duty to cause a written notice identifying such property to be issued to the person owning the same. Such notice shall be addressed to such person at his/her last known address by registered mail requiring the abatement of such nuisance by removing and/or abating the objectionable, unsightly or unsanitary matter of whatever nature, as the case may be, within ten (10) days from the service of such notice and a statement that failure to abate such nuisance may result in the city taking corrective action, the costs of which shall constitute a lien against the property, enforceable in the same manner as real estate taxes. In the event the nuisance is a danger to public health, the nuisance shall be abated immediately upon notice from the chief building and code enforcement officer or his/her designees.

(Ord. No. 416, 4-11-01; Ord. No. 542, § 3, 4-8-2015)

Sec. 11-60. Penalty for failure to abate nuisance.

Where appropriate, an extension may be granted by the chief building and code enforcement officer or his/her designees if he/she is agreeable [that] the problem is being addressed in a timely manner. If said owners allow said nuisance to exist or fail to abate said nuisance within ten (10) days of receipt of a notice to abate nuisance they, and each of them, upon conviction thereof shall be fined not less than two hundred seventy-five dollars (\$275.00) for the first offense and five hundred fifty dollars (\$550.00) for subsequent offenses. Any person violating the provisions of section 11-54(3) shall be guilty of a violation per RSA 634:2 and may be subject to a fine of up to one thousand dollars (\$1,000.00). A separate offense shall be deemed commit-

ted on each day during or on which such nuisance under this article III is permitted to exist beyond the date specified in said notice to abate.

Nothing herein shall prevent the city from obtaining injunctive relief to force the abatement of said nuisance.
(Ord. No. 416, 4-11-01; Ord. No. 542, § 3, 4-8-2015)

Sec. 11-61. Applicability.

(a) [*Generally.*] Every residential, nonresidential, commercial, industrial, farming or mixed occupancy building and the land on which it is situated, used or intended to be used for dwelling, commercial, business, industrial or mixed use occupancy or mobile home park shall comply with the provisions of this article, whether or not such building shall have been constructed, altered or repaired before or after the enactment of this article, and irrespective of any permits or licenses which shall have been issued for the use or occupancy of the building or premises for the construction or repair of the building, or for the installation or repair of equipment or facilities prior to the effective date of this article.

(b) *Higher standard to prevail in case of conflict with other laws or ordinances.* In any case where the provisions of this article impose a higher standard than set forth in any other local ordinances or under the laws of the state then the standards as set forth herein shall prevail, but if the provisions of this article impose a lower standard than any other local ordinances or of the laws of the state then the higher standard contained in any such other ordinances or law shall prevail.

(c) *Enforcement of and compliance with other ordinances.* No license or permit or other certification of compliance with this article shall constitute a defense against any violation of any other local ordinance applicable to any structure or premises, nor shall any provision herein relieve any owner, operator, agent or occupant from complying with any such other provision, nor any official of the city from enforcing any such other provision.
(Ord. No. 416, 4-11-01; Ord. No. 542, § 3, 4-8-2015)

